

25NWCV04029 25NWCV04029

County: los-angeles

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PADILLA v. HYUNDAI MOTOR AMERICA

CASE NO.: 25NWCV04029

HEARING: Tuesday, September 15, 2026, at 9:30 AM

I.

Defendant HYUNDAI's Demurrer is SUSTAINED with 30 days leave to amend.

II.

Defendant HYUNDAI's Motion to Strike is GRANTED with 30 days leave to amend.

Moving Party to give notice.

Background

On November 12, 2025, Plaintiffs IRAM PADILLA and WENDOLLY ESCOBAR ("Plaintiffs") filed this lemon law action against Defendants HYUNDAI MOTOR AMERICA. ("Defendant" or "HYUNDAI") and DOES 1 through 10, inclusive.

Plaintiffs' Complaint alleges the following causes of action:

(1) Breach

of Express Warranties (Song-Beverly Consumer Warranty Act);

(2) Breach

of Implied Warranty (Song-Beverly Consumer Warranty Act); and

(3) Violation

of Business and Professions Code Section 17200

On May 6, 2026, Defendant filed the instant Demurrer to Plaintiffs' Third Cause of Action for Violation of Business and Professions Code Section 17200 concurrently with a Motion to Strike.

On September 9, 2026, Defendant filed a Notice of Non-Opposition to the instant Demurrer and Motion to Strike.

As of September 10, 2026, Plaintiffs have not filed any Opposition to the instant Demurrer or Motion to Strike.

Judicial Notice

Defendant requests the Court take judicial notice of the following:

(1) That

Defendant Hyundai Motor America has elected under Code Civ. Proc., § 871.29, to opt in to the new statutory framework under Part 2, Title 10, Chapter 12 of the Code of Civil Procedure; and

(2) The

list of manufacturers who have opted in to the new statutory framework under Part 2, Title 10, Chapter 12 of the Code of Civil Procedure, which is maintained by the State of California, Department of Consumer Affairs at: https://www.dca.ca.gov/acp/accepted_manufacturers.shtml.

A true and correct copy of the list of manufacturers who have opted in to the new statutory framework under Part 2, Title 10, Chapter 12 of the Code of Civil Procedure as of May 30, 2025 is attached thereto as Exhibit A.

Defendant's Request for Judicial Notice is GRANTED.

(Cal. Evid. Code § 452(d).)

Third Cause of Action – Violation of Business and Professions Code Section 17200

To set forth a claim for a violation of Business and Professions Code section 17200 (“UCL”), Plaintiffs must establish Defendant was engaged in an “unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising” and certain specific acts. (Bus. & Prof. Code, § 17200.) A cause of action for unfair competition “is not an all-purpose substitute for a tort or contract action.” (Cortez v. Purolator Air Filtration Products Co. (2000) 23 Cal.4th 163, 173.)

Defendant argues that Plaintiffs’ UCL claims fails because it cannot satisfy the heightened pleading standard required of UCL claims, namely that the actionable underlying claim is not identified, the fraudulent conduct is not identified with specificity, and to the extent the claim is based on deceptive advertising, the false or misleading representations are not identified with specificity.

First, Plaintiffs failed to allege any unlawful conduct by Hyundai, only claims of an alleged breach of warranty, which “is not itself an unlawful act for purposes of the UCL.” (Puentes v. Wells Fargo Home Mortgage, Inc., (2008) 160 Cal.App.4th 638, 645.) “Contractual duties are voluntarily undertaken by the parties to the contract, not imposed by state or federal law.” (Smith v. Wells Fargo Bank, N.A., (2005) 135 Cal.App.4th 1463, 1484.) An act that breaches a contract may also breach the UCL, but only when the act is unfair, unlawful or fraudulent for some additional reason. (Id. at 1483.)

Second, Plaintiffs failed to properly allege the fraudulent prong to support their UCL claim. Plaintiffs did not plead any separate causes of action for fraudulent conduct and have not pleaded any facts demonstrating any fraudulent conduct or misrepresentations made by Hyundai with respect to the subject vehicle.

Third, Plaintiffs failed to properly allege facts supporting the unfair prong of the UCL. To proceed under the unfair prong of the UCL, Plaintiff is required to allege, among other things, how the harm caused by the conduct claimed to be unfair, outweighs any benefits said conduct may have. (Moters, Inc. v. Times Mirror Co. (1980)

102 Cal.App.3d 735, 740.) Further, a UCL claim based upon unfairness will not lie where the claimed unfair conduct has either expressly been shown to not be unlawful or where the conduct sought by the plaintiff is not required by law. (Lazar v. Hertz Corp. (1999) 69 Cal. App. 4th 1494; Kunert v. Mission Financial Services Corp. (2003) 110 Cal.4th 242.) Similarly as to above, Plaintiffs have failed to provide any facts supporting their UCL claim other than their claim for breach of warranty, and have failed to include facts demonstrating unlawful, fraudulent, or unfair conduct by Hyundai with respect to the subject vehicle.

Therefore, Defendant's Demurrer is SUSTAINED with leave to amend within 30 days.

Motion to Strike

A motion to strike lies either when (1) there is "irrelevant, false or improper matter inserted in any pleading"; or (2) to strike any pleading or part thereof "not drawn or filed in conformity with the laws of this state, a court rule or order of court." (CCP §436.)

"At least 30 days prior to the commencement of an action seeking civil penalties under subdivision (c) of Section 1794 of the Civil Code, the consumer shall do all of the following: (1) Notify the manufacturer of the consumer's name, the accurate Vehicle Identification Number ("VIN") of the motor vehicle, and a brief summary of the repair history and problems with the motor vehicle. (2) Demand that the manufacturer repurchase or replace the motor vehicle." CCP § 871.24(a). The failure to comply with the pre-lawsuit notification requirement precludes recovery of civil penalties for a Song-Beverly claim. (CCP 871.24(h).)

Here, Plaintiffs have not alleged compliance with CCP § 871.24(a). Thus, Defendant's motion to strike allegations pertaining to civil penalties is GRANTED.

Because Plaintiffs can reasonably amend his Complaint to show compliance with CCP 871.24(a), the Court grants leave to amend.

Conclusion

Defendant's Demurrer is SUSTAINED with 30 days leave to amend.

Defendant's Motion to Strike is GRANTED with 30 days leave to amend.